SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 61 of 2002 **CNR: SCIN010000612002**

Date: 19 October, 2006 *Citation: (2006) 8 SCC 212*

CORAM: Hon'ble Y.K. Sabharwal, C.J., K.G. Balakrishnan, S.H. Kapadia, C.K. Thakker

Petitioner: M. Nagaraj & Others

- VERSUS -

Respondent: Union of India & Others

DOMAIN: AFFIRMATIVE ACTION & PROMOTION QUOTAS **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The State is not bound to make reservation for SC/ST in matters of promotions. If they wish to exercise their discretion, the State must gather quantifiable data showing backwardness of the class and inadequacy of representation under Article 335.

STATUTES APPLIED: Article 16(4A), Article 16(4B), Article 335

DISPOSITION: ARTICLES 16(4A) AND 16(4B) UPHELD WITH QUANTIFIABLE DATA PROVISO

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench upheld constitutional amendments enabling reservation in promotions for SC/STs, subject to the State producing quantifiable data showing backwardness, inadequacy of representation, and maintenance of administrative efficiency.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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